

Sohan Pal Singh v. State of U.P. — excessive bill relegated to Clause 6.5(b)

High Court of Judicature at Allahabad · Division Bench · 9 February 2016 · Writ-C No. 5546 of 2016 · **Writ dismissed with liberty to avail Clause 6.5(b).**

HEADNOTE

A Kutir Jyoti consumer who disputes an electricity bill as highly excessive, including for a disconnection period, cannot have the High Court examine the bill in the first instance. Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005 is the statutory alternative remedy for a dispute regarding an excessive bill. The writ is dismissed with liberty to avail that remedy.

FACTUAL SUMMARY

The petitioner, Sohan Pal Singh, claimed that he had been given an electricity connection under the Union Government's Kutir Jyoti Programme for persons below the poverty line. The Executive Engineer of Madhyanchal Vidyut Vitran Nigam Limited at Budaun then raised a bill which, according to him, was highly excessive and covered even the period when supply stood disconnected. He disputed the entire bill in a writ petition against the State of Uttar Pradesh and the distribution licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

excessive-bill alternative remedy

HOLDING

Where a consumer disputes an electricity bill as excessive, including charges for a period of disconnection, Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005 is the statutory alternative remedy. The High Court will not, in the first instance, examine the correctness of the bill. The writ petition is dismissed with liberty to avail that remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A Kutir Jyoti consumer who disputes an electricity bill as highly excessive, including for a disconnection period, cannot have the High Court examine the bill in the first instance..

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL, INCLUDING CHARGES FOR THE DISCONNECTION PERIOD

Left to Clause 6.5(b); the Court declined to examine the bill in the first instance. ¶ 1